

on the part of this Defendant. The mere fact that an intentional tort is alleged is not sufficient. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) Conclusory allegations of fraud, oppression and malice are not enough. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.)

Furthermore, when seeking punitive damages against a corporation like Defendants, Plaintiff must allege “advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud or malice ... on the part of an officer, director or managing agent of the corporation.” (Civ. Code §3294.) A review of Plaintiff’s FAC shows that there are no allegations regarding the conduct of an officer, director, or managing agent of either Defendant. Accordingly, this requirement of pleading punitive damages against a corporation has not been satisfied. (See CCP § 3294(b).)

For the foregoing reasons, Defendants’ motion is **granted** with respect to the punitive damages allegations within paragraph 71 of the seventh cause of action and paragraph 3 of the prayer for relief, with leave to amend.

Attorney’s Fees

Defendants move to strike Plaintiff’s prayer for attorney’s fees on the grounds that Plaintiff has not alleged any statutory or contractual provision that would entitle her to attorney’s fees.

While Defendants are correct that Plaintiff has not alleged any contractual provision that would entitle her to attorneys’ fees, unsupported attorneys’ fee allegations need not be stricken pursuant to a motion to strike, since later discovery may reveal a basis for their recovery. (*Camenisch v. Superior Court* (1996) 44 Cal.App.4th 1689, 1699.) In addition, “[t]here is no requirement that a party plead that it is seeking attorney fees, and there is no requirement that the ground for a fee award be specified in the pleadings.” (*Yassin v. Solis* (2010) 184 Cal.App.4th 524, 533.) Attorneys’ fees are recoverable as costs if authorized by statute, contract or law. (CCP § 1033.5, subd. (a)(10).)

As a consequence, Defendants’ motion is **denied** with respect to the attorney’s fees allegations.

6. 9:00 AM CASE NUMBER: C25-03103
CASE NAME: CYLUS JASIAH MARTIN-HAREN, VS. LINDA CHU, M.D.

FILED BY: CHU, M.D., LINDA

TENTATIVE RULING:

Continued by the Court to September 20, 2026.

7. 9:00 AM CASE NUMBER: C25-03103
CASE NAME: CYLUS JASIAH MARTIN-HAREN, VS. LINDA CHU, M.D.

SEAL DECLARATIONS IN SUPPORT OF MOTION TO COMPEL ARBITRATION THAT CONTAIN
CONFIDENTIAL INFORMATION

FILED BY: CHU, M.D., LINDA

TENTATIVE RULING:

Continued by the Court to September 20, 2026.

8. 9:00 AM CASE NUMBER: C25-03197

CASE NAME: RODDA ELECTRIC, INC. VS. TMW & ASSOCIATES, INC.

ENFORCE SETTLEMENT AGREEMENT

FILED BY: HAGGERTY CONSTRUCTION, INC.

TENTATIVE RULING:

Defendants and cross-complainants Haggerty Construction Inc. (“Haggerty”) and TMW & Associates, Inc. (“TMW” together with Haggerty, “Defendants”) bring the instant motion to enforce settlement agreement (the “Motion”) in regards to the complaint filed by plaintiffs and cross-defendants Rodda Electric, Inc. (“Rodda”), Bluebird Property Investments, LLC (“Bluebird”), and Eagle Peak Investments, LLC (“Eagle Peak”) (together referred to as “Plaintiffs”).

For the reasons discussed below, Defendants’ Motion is DENIED.

Background

Allegations from the First Amended Complaint (“FAC”)

Plaintiffs Rodda Electric, Inc., Bluebird Property Investments, LLC, and Eagle Peak Investments, LLC (“Plaintiffs”) allege that they hired TMW as the general contractor to construct improvements at 385 Carol Court, Brentwood, California (the “Property”). (FAC, ¶ 21.) They assert that after the TMW principal who signed the contract between them left to work for Haggerty Construction, Inc., HCI took over general contracting duties. (*Id.* at ¶ 22.)

TMW/HCI subcontracted work to numerous defendants. (FAC, ¶ 23.) Plaintiffs allege the work on the project was defective, did not comply with plans or industry standards, and resulted in construction defects in multiple components including concrete walls, joints, painting, awnings, storefront, flatwork, topping slab, waterproofing, roofing, paving, and exterior doors. (*Id.* at ¶¶ 24–25.) They claim defendants failed to prevent or correct defects, leaving the Property in a dangerous and defective condition and causing continuous and progressive damage. (*Id.* at ¶¶ 26–29.)

Plaintiffs further allege project delays and numerous punch-list items led them to withhold payments, prompting TMW/HCI to record a mechanics lien. (FAC, ¶¶ 30–31.) The parties negotiated a “Close Out Agreement” intended to resolve only the lien dispute and punch-list issues. (*Id.* at ¶ 32.) Plaintiffs drafted the agreement (Exhibit A), after which TMW/HCI returned a “Revised Close Out Agreement” with “some modifications” (Exhibit B). (*Id.* at ¶ 33.) Plaintiffs allege they signed the revised version without counsel, believing the changes were minor. (*Id.* at ¶¶ 34–35.) Later they learned the additional language operated as a broad release of all claims relating to the project—something Plaintiffs assert was never agreed to and provided no consideration. (*Id.* at ¶¶ 36–38.)

Based on these allegations, Plaintiffs assert claims for: (1) breach of written contract (FAC, ¶¶ 39–43); (2) breach of oral contract (*Id.* at ¶¶ 44–49); (3) negligence (*Id.* at ¶¶ 50–56); (4) breach of implied warranty (*Id.* at ¶¶ 57–63); (5) breach of express warranty (*Id.* at ¶¶ 64–70); (6) products liability (*Id.* at ¶¶ 71–76); (7) reformation for unilateral mistake (*Id.* at ¶¶ 77–86); and (8) rescission for unilateral mistake (*Id.* at ¶¶ 87–97). Plaintiffs seek general and special damages, civil penalties, interest, attorney fees and costs, and either reformation or rescission of the Revised Close Out Agreement. (FAC, pp. 18-19.)

Allegations from Defendants' Cross-Complaints

Defendants Haggerty and TMW have each filed a cross-complaint against Plaintiffs (Haggerty XC and TMW XC, respectively). The Haggerty and TMW XCs are almost identical in their allegations, and each assert the same claims and seek the same amount of damages. (*Compare* Haggerty XC with TMW XC.) Both XCs seek damages in the amount of \$505,696.98 (Haggerty XC, p. 15; TMW XC, p. 16), based on claims of: (1) breach of contract; (2) declaratory relief; (3) express indemnity; (4) breach of contract re: additional insurance; (5) implied indemnity; (6) equitable indemnity; (7) contribution and apportionment; and (8) declaratory relief. (Haggerty XC, pp. 1-15; TMW XC, pp. 1-16.) Defendants also seek attorney fees and costs, a declaration that the Settlement Agreement is binding on Plaintiffs and TMW is not responsible for any of the allegations in Plaintiffs' operative complaint, a declaration that each cross-defendant is responsible for any sums awarded to Plaintiffs against TMW, and pre-judgment interest. (Haggerty XC, pp. 15-16; TMW XC, p. 16.)

The XCs are based on allegations that Plaintiffs and Defendants entered into a Contract Close Out Settlement Agreement ("Settlement Agreement") in November 2023, based on a prior dispute of the parties wherein Defendants claimed that Plaintiffs failed to pay \$538,951.25 for work on the project, for which Defendants recorded a mechanic's lien and filed a lawsuit in Contra Costa Superior Court (C23-02643). (Haggerty XC, pp. 8-10; TMW XC, pp. 8-11.) Defendants assert that the Settlement Agreement and its release and 1542 waiver bar the Plaintiffs' current claims in the FAC. (*Ibid.*)

Request for Judicial Notice:

Defendants request the Court to take judicial notice of: (1) the certificate of occupancy for the Property; (2) the notice of substantial completion of the project; (3) a mechanic's lien recorded against the Property during an earlier dispute between the parties; (4) the complaint filed in *TMW & Associates, Inc. v. Bluebird Property Investments, et al.*, Contra Costa County Superior Court, case no. C23-02643; and (5) the first amended complaint filed in this instant matter. Defendants request judicial notice of the above-referenced documents via Evidence Code sections 452 and 453, no subdivisions identified. (Request for Judicial Notice, p. 1.)

The Court GRANTS Defendants' requests for judicial notice nos. 1-5, as to the existence of the documents but not the truth of the matters asserted therein. (Evid. Code, § 452, subds. (c), (d).) "Taking judicial notice of a document is not the same as accepting the truth of its contents or accepting a particular interpretation of its meaning. While courts take judicial notice of public records, they do not take notice of the truth of matters stated therein. When judicial notice is taken of a document, ... the truthfulness and proper interpretation of the document are disputable." (*Herrera v. Deutsche Bank Nat'l Trust Co.* (2011) 196 Cal.App.4th 1366, 1375.)

The Court, on its own motion, takes judicial notice of the docket and filings in the *TMW & Associates, Inc. v. Bluebird Property Investments, et al.*, matter, Contra Costa County Superior Court, case no. C23-02643. (Evid. Code, § 452, subd. (d).)

Discussion

Moving Papers

Defendants argue that the court has the power to enforce settlement agreements pursuant to Section 664.6 of the Code of Civil Procedure and that the Settlement Agreement encompasses Section 664.6 at paragraph 15. (Motion MPA, pp. 8-10.) Defendants point out that the Settlement Agreement was prepared and reviewed by attorneys for both parties. (*Id.* at pp. 10-12.) Defendants next contend that the broad release and express Civil Code section 1542 waiver bars later asserted claims, including unknown and unanticipated claims. (*Id.* at pp. 10-12.) Defendants also point to specific language in the Settlement Agreement stating that “Haggerty/TMW agrees to honor the warranty on the building for the period of 1 year following notice of completion dated 7/21/23,” which means that any alleged warranty obligations have now expired. (*Id.* at pp. 13-14.) Next, Defendants assert that Plaintiffs’ attempt to avoid enforcement through unilateral mistake does not defeat enforcement because a “mistake” in thinking that the changes adding the Section 1542 waiver were immaterial is not the sort of mistake the law provides relief for. (*Id.* at p. 14.) Finally, Defendants argue that there was consideration for the broader release and that attorney fees are recoverable because the Settlement Agreement contains an attorney fee clause. (*Id.* at pp. 14-15 [Defendants explicitly ask for their attorney fees as the prevailing parties].)

Defendants also filed a declaration of Ryan Haggerty that provides evidentiary support for the positions and arguments in the Motion MPA. (Haggerty Decl. ISO Motion, ¶¶ 1-23.) A declaration of Christopher M. Lea was also filed a declaration requesting that the Court: “enter an order (1) granting this Motion to Enforce Settlement Agreement pursuant to Code of Civil Procedure section 664.6; (2) dismissing with prejudice all claims in the First Amended Complaint as to defendants TMW/HCI; (3) awarding TMW and HCI attorneys’ fees and costs pursuant to the terms of the Final Settlement Agreement; and (4); and directing the Clerk of this Court to enter dismissal with prejudice as to TMW and HCI and update the docket accordingly.” (Lea Decl. ISO Motion, ¶ 8.) Mr. Lea asserts that the fees and costs incurred in this litigation to date equal \$37,068.72. and that counsel for Gordon & Rees will submit a declaration quantifying his attorney fees to date prior to the hearing. (*Id.* at ¶¶ 14-15.)

Opposition

Plaintiffs’ argument in opposition includes a summary of the legal standard for Code of Civil Procedure section 664.6 and an assertion that there was no meeting of the minds on material terms of the Settlement Agreement and the Settlement Agreement does not have mutual assent on the Section 1542 waiver issue. (Opposition, pp. 5-6.) Plaintiffs detail the legal standards for rescission and reformation of a contract and cites *Casey v. Proctor* (1968) 59 Cal.2d 97, 109, to argue that “[t]he mere recital in a release that it covers unknown claims, or that section 1542 is waived, does not by itself bar ‘a claim for injuries later discovered in the absence of a showing of a conscious understanding that if injuries were suffered which had not yet manifested themselves, they too would be discharged by the release.’” (Opposition, pp. 7-8.) Plaintiffs argue that this Motion is procedurally improper because it is essentially a motion for summary adjudication and there are issues of fact that are disputed, such as claims that warranty issues were raised to Defendants within the one-year period and that discovery has been stayed so they have been unable to pursue this issue. (*Id.* at pp. 8-9.) Plaintiffs then argue that the Court should not enforce the close-out agreement because the parties did not have an objective meeting of the minds on all material terms. (*Id.* at pp. 9-12.)

Next, Plaintiffs contend that the Section 1542 waiver language added by Defendants is not broad and unambiguous and that no consideration was exchanged for the broader release language.

(Opposition, pp. 12-13.) Plaintiffs assert that unilateral mistake is grounds for rescinding and/or reforming the Settlement Agreement and that Defendants remain liable for the incomplete warranty obligations. (*Id.* at pp. 13-14.) Finally, Plaintiffs ask for their attorney fees pursuant to the Settlement Agreement. (*Id.* at pp. 14-15.)

Plaintiffs included with their opposition a declaration of Mark Rice, an attorney who assisted with the drafting of the Settlement Agreement, and a declaration of Raymond Rodda, who worked with Defendants on the Settlement Agreement on behalf of Plaintiffs. Mr. Rice states that he did not see or provide any feedback to Plaintiffs related to the redline changes from Defendants that included the Section 1542 waiver. (Rice Decl. ISO Opposition, ¶ 29.) The Rodda declaration provides evidentiary support for the arguments in the Opposition. (Rodda Decl. ISO Opposition, ¶¶ 1-15.)

Reply

Defendants argue on reply that Plaintiffs' opposition ignores Rodda's approval and signature, which establish mutual assent. (Reply, pp. 3-4.) Defendants further contend that the Section 1542 waiver was neither surreptitious nor ambiguous and was approved in writing. (*Id.* at pp. 4-5.) Next, Defendants assert that Plaintiffs have not met their burden of establishing the grounds for rescission or reformation of the Settlement Agreement. (*Id.* at pp. 6-7.) Defendants contend that Attorney Rice's declaration is unavailing and that the Court should reject Plaintiffs' attempt to avoid the bargained for release. (*Id.* at pp. 7-9.) Finally, Defendants argue that Plaintiffs delay in asserting mistake destroys their equitable claims. (*Id.* at pp. 9-10.) Plaintiffs submit a declaration from Christopher M. Lea, with their reply, which presents some deposition testimony of Mr. Rodda relating to the finalization of the Settlement Agreement and his calling of his attorney for assistance in understanding Defendants' proposed changes to the Settlement Agreement. (Lea Decl. ISO Reply, ¶¶ 1-2.)

CCP § 664.6 Request to Enforce Settlement Agreement

Defendants ask this Court to enforce a 2023 settlement agreement arising out of *TMW & Associates, Inc. v. Bluebird Property Investments, et al.*, Contra Costa County Superior Court, case no. C23-02643, pursuant to Code of Civil Procedure section 664.6. (MPA ISO Motion, pp. 8-10; Lea Decl. ISO Motion ¶ 8 ["Defendants . . . respectfully request that the Court enter an order (1) granting this Motion to Enforce Settlement Agreement pursuant to Code of Civil Procedure section 664.6 . . ."].)

However, in order to invoke the summary procedure to enforce settlements pursuant to Code of Civil Procedure section 664.6, strict compliance with the code is required. "A request for the trial court to retain jurisdiction under CCP § 664.6 must conform to the same three requirements which the Legislature and the courts **have deemed necessary for § 664.6 enforcement of the settlement itself**: the request must be made (1) during the pendency of the case, not after the case has been dismissed in its entirety. . . ." (*Mesa RHF Partners. L.P. v. City of Los Angeles* (2019) 33 Cal.App.5th 913, 917, emphasis added.)

The request to the court that it retain jurisdiction under section 664.6 must be made by the parties. "[A] request that jurisdiction be retained until the settlement has been fully performed must be made either in a writing signed by the parties themselves, or orally before the court by

the parties themselves. . . In this case, the parties could have easily invoked section 664.6 by filing a stipulation and proposed order either attaching a copy of the settlement agreement and requesting that the trial court retain jurisdiction under section 664.6 or a stipulation and proposed order signed by the parties noting the settlement and requesting that the trial court retain jurisdiction under section 664.6. The process need not be complex. But strict compliance demands that the process be followed.

(*Mesa RHF Partners, L.P. v. City of Los Angeles* (2019) 33 Cal.App.5th 913, 918; *Elyaoudayan v. Hoffman* (2003) 104 Cal.App.4th 1421, 1424 [“Under section 664.6 of the Code of Civil Procedure, a trial court may enforce a settlement agreement made during pending litigation if the parties entered into the agreement either orally before the court or in writing outside the presence of the court.”].)

Here, in reviewing the 2023 docket for *TMW & Associates, Inc. v. Bluebird Property Investments, et al.*, Contra Costa County Superior Court, case no. C23-02643, the Court has determined that there was never a request made in that case for the court to retain jurisdiction. On November 22, 2023, a request for dismissal was filed that dismissed the case without prejudice, yet there was nothing attached to the document that indicated the Court should retain jurisdiction—it was just a standalone CIV-110 form.

Despite the parties seemingly agreeing between themselves in the Settlement Agreement that CCP §§ 664.6 and 664.7 would apply (FAC, Exh. B, ¶ 15), there was never a request made during the pendency of the 2023 action for the Court to retain jurisdiction. At the time the parties here entered into their settlement agreement and dismissed the 2023 action, CCP section 664.6 authorized the Court to retain jurisdiction to enforce a settlement, “if requested by the parties.” “‘Because of its summary nature, strict compliance with the requirements of section 664.6 is prerequisite to invoking the power of the court to impose a settlement agreement.’ [Citation.]” (*Mesa, supra*, 33 Cal.App.5th at p. 917.)

In *Mesa*, the Court of Appeal rejected the argument that the parties’ signed settlement agreement was sufficient to retain the trial court’s jurisdiction because the agreement was never presented to the court, and the court was never asked to retain jurisdiction, before the case was dismissed. (*Mesa, supra*, 33 Cal.App.5th at p. 918.) There, the fact the parties had a signed agreement for the court to retain jurisdiction alone was not sufficient because “subject matter jurisdiction ‘is not subject to forfeiture or waiver’ and cannot be conferred by ‘estoppel, consent, . . . or agreement.’” (*Id.* at p. 918, fn. 3.)

Here, Defendants dismissed the 2023 action without prejudice on November 22, 2023, and there is nothing in the record to show the parties requested the Court to retain jurisdiction, or that the Court otherwise retained jurisdiction in any way. This lack of jurisdiction does not render any settlement agreement the parties entered into unenforceable. Rather, it simply means it may not be enforced through the summary procedures authorized by CCP § 664.6.

Defendants’ motion to enforce the Settlement Agreement is thus DENIED WITHOUT PREJUDICE to Defendants invoking some other procedure to enforce the settlement agreement.

Attorney Fees

Defendants and Plaintiffs have each requested attorney fees. The Settlement Agreement provides attorney fees to the prevailing party, which the Court will determine at a later date in this litigation.

Ruling

Based on the above analysis, Defendants' motion to enforce the settlement agreement is DENIED WITHOUT PREJUDICE to Defendants invoking some other procedure to enforce the settlement agreement.

9. 9:00 AM CASE NUMBER: C26-00770
CASE NAME: JIE SUO VS. GEZHI WENG
COMPLAINT
FILED BY: WENG, GEZHI
TENTATIVE RULING:

Defendant Gezhi Weng's Demurrer to Plaintiff Jie Suo's Complaint is **overruled** in its entirety.

Plaintiff shall prepare a formal order consistent with this ruling and serve notice of entry of order. Defendant shall have 10 days from service of notice of entry to file and serve an answer to the complaint.

I. Background and Allegations of the Complaint

Plaintiff Jie Suo, a Mandarin speaker who cannot speak or read English, met Defendant Gezhi Weng in 2014. (Complaint, ¶¶ 11, 14.) Weng, a licensed bilingual real estate broker and mortgage loan originator running SunRise Realty and Financing out of her home, convinced Suo to purchase a residence at 3128 Marsala Drive in Pittsburg, California (the Property), in early 2015 for \$630,893. (*Id.* ¶¶ 3-4, 12-13, 17-18.) Suo contributed over \$104,000 of her own funds into escrow for the down payment and closing costs. (*Id.* ¶¶ 19, 27.) Rather than shopping for conventional market-rate financing as promised, Weng steered Suo into a private hard-money loan at a 15% interest rate funded by SunCoast Realty, an unregistered entity run by Weng's brother, Yi Weng, and sister-in-law, Ning Qin. (*Id.* ¶¶ 5-7, 22-24.) Weng concealed this family relationship, collected origination fees and uncredited cash payments from Suo, provided English-only documents without required translations, and promised that the 15% loan would be refinanced into a standard mortgage within 45 days. (*Id.* ¶¶ 23, 26, 28-29, 34-36.) Escrow closed and title was conveyed to Suo on March 23, 2015. (*Id.* ¶ 33.)

When Suo pressed to refinance out of the high-interest loan over the following year, Weng claimed she was searching for lenders. (Complaint, ¶¶ 37-38, 42-43.) On October 17, 2016, Weng directed Suo to meet her at a mailbox store in Oakland to sign what Weng represented were standard documents needed to search for a new refinance loan. (*Id.* ¶ 39.) Because the document was untranslated and entirely in English, Suo signed it, unaware that it was actually a Gift Deed transferring a 50% ownership interest in the Property to Weng for zero consideration. (*Id.* ¶¶ 40-41, 84-85.)

In June 2017, Weng arranged a refinance through Sterling Bank to pay off the 15% SunCoast loan. (*Id.* ¶¶ 44, 54.) Weng told Suo that she was merely co-signing as a guarantor because Suo was not a U.S.